

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Brokate	Team: Team # 2	CCRB Case #: 201203745	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/22/2012 10:15 PM	Location of Incident: Woodbine Street and Broadway	Precinct: 83	18 Mo. SOL 9/22/2013	EO SOL 9/22/2013	
Date/Time CV Reported Thu, 03/22/2012 11:05 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 03/22/2012 11:05 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Arsenio Camilo	03793	938152	PBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Peter Ahn	14179	948594	PBBN

Officer(s)	Allegation	Investigator Recommendation
A.SGT Arsenio Camilo	Abuse: Sgt. Arsenio Camilo supervised the stop of the car in which § 87(2)(b) was an occupant.	
B.SGT Arsenio Camilo	Abuse: Sgt. Arsenio Camilo supervised the search of the car in which § 87(2)(b) was an occupant.	

Case Summary

The following complaint was filed by § 87(2)(b) via the CCRB on-line website on March 22, 2012. On March 22, 2012, at approximately 10:15 p.m., § 87(2)(b) was driving in the vicinity of Woodbine Street and Broadway in Brooklyn, when he was stopped by two officers, who he identified by name as PO Peter Ahn and Sgt. Arsenio Camilo of Patrol Borough Brooklyn North (Allegation A). Sgt. Camilo asked § 87(2)(b) if he had any illegal items in his vehicle and § 87(2)(b) said he did not. Sgt. Camilo then asked § 87(2)(b) to step out of the vehicle and § 87(2)(b) complied. Both Sgt. Camilo and PO Ahn searched § 87(2)(b)'s vehicle but no contraband was found (Allegation B). § 87(2)(b) was not summonsed or arrested. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

On March 29, 2012, a first phone call was placed to § 87(2)(b). During this phone call, § 87(2)(b) agreed to mediate his complaint. § 87(2)(b) also stated that he resides in Pennsylvania but frequently travels to New York City. From March 30, 2012, until June 4, 2012, four voicemails were left for § 87(2)(b) requesting a call back. The undersigned investigator needed to inform § 87(2)(b) that his travel expenses would not be reimbursed and also inform him that a mediation can be cancelled on very short notice, as well as ask § 87(2)(b) about whether he was planning on filing a lawsuit regarding the incident. On May 21, 2012, the undersigned investigator spoke to Tahira Delaine from the ADR unit. Ms. Delaine informed the investigator that in order for this case to be mediation eligible, the follow up phone call had to be completed. On May 21, 2012, a first "please call" letter was sent to § 87(2)(b) and on June 4, 2012, § 87(2)(b) was emailed a copy of a final "please call" letter. On June 6, 2012, a search of the NYC Department of Correction website was conducted and § 87(2)(b) is not currently incarcerated in New York City. To date, none of the letters sent to § 87(2)(b) have been returned to the CCRB.

To date, § 87(2)(b) has failed to contact the CCRB. § 87(2)(g)

§ 87(2)(b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date